

PLJ 2022 Lahore 99
Present: JAWAD HASSAN, J.
NASREEN MAJEED CHOCHAN--Petitioner

versus

ADVOCATE GENERAL PUNJAB etc.--Respondents

W.P. No. 17204 of 2021, decided on 17.11.2021.

Legal Practitioners & Bar Councils Act, 1973--

---S. 13(2)--Constitution of Pakistan, 1973, Art. 199--Constitutional petition--Maintainability--Premature--License to practice as an advocate was suspended--Decision of Provincial Bar Council--Alternate remedy of filing appeal before Pakistan Bar Council--Remedy of filing an appeal before Pakistan Bar Council is available to Petitioner, writ is not competent being premature--PBC is not amenable to the constitutional jurisdiction of this Court.

[Pp. 101 & 102] A & B

2021 SCMR 425 & 2017 CLC 1173 *ref.*

Mr. Safdar Shaheen Pirzada, ASC with Petitioner.

Mr. Waqar Saeed Khan, Assistant Advocate General Punjab on behalf of Respondent No. 1.

Mr. Javed Imran Ranjha, ASC for Respondents No. 4 to 5.

Date of hearing: 17.11.2021.

ORDER

The Petitioner, through this petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “**Constitution**”), has impugned letter dated 16.01.2021, issued by the Respondent/Punjab Bar Council, Lahore (the “**PBC**”). Subsequently, she has also assailed the validity of impugned order dated 08.01.2021, passed by the PBC, whereby her license to practice as an advocate has been suspended, by filing a miscellaneous application with amended writ petition.

2. Mr. Safdar Shaheen Pirzada, ASC submits that the impugned letter is the outcome of the impugned order dated 08.01.2021 on which date allegedly an incident took place at the premises of the PBC. He further submits that through the impugned order, the concerned authority of the PBC has held responsible some advocates, including the Petitioner, for happening of the aforesaid (alleged) incidence and not only suspended their licenses to practice as advocates but also put a ban on their entry in the PBC premises. He maintains that the Petitioner has no concern with the alleged incidence and her name has wrongly been mentioned in the impugned order. He claims that the impugned order is illegal and without lawful authority, therefore, the same is liable to be set-aside.

3. When confronted how writ is maintainable being pre-mature because against any decision of the Provincial Bar Council alternate remedy of filing an appeal before the Pakistan Bar Council is available under Section 13(2) of the Legal Practitioners and bar Councils Act, 1973 (the “**Act**”), Mr. Safdar Shaheen Pirzada, ASC submits that the PBC, while taking action against the Petitioner, has not followed the relevant provisions of the Act. He explains that under Section 41 of the Act, conduct of an advocate will be thoroughly looked into before awarding him or her any penalty on account of misconduct but this procedure has been ignored by the PBC, thus, offending the provisions of Article 10-A of the Constitution, which clearly provides right of fair trial and due process to every citizen of this country. He adds that under Article 4 of the Constitution it is an inalienable right of every citizen to be treated in accordance with law and no action detrimental to his/her life, liberty, reputation or property shall be taken except as per law. He pleads that the law/Act provides for constitution of an Inquiry Committee to hold an inquiry

in such like matters while the impugned order mentions about an Inquiry Officer who cannot be considered equivalent to an Inquiry Committee, therefore, any finding given by the said inquiry officer has no legal sanctity.

4. Mr. Javed Imran Ranjha, ASC appearing on behalf of the PBC has also strongly objected to the maintainability of this petition by stating that jurisdiction of this Court under Article 199 of the Constitution is barred in presence of the alternate efficacious remedy to the Petitioner under Section 13(2) of the Act. He maintains that the Petitioner may agitate all her grounds before the appellate authority/forum in the appeal. He next contends that the matter regarding suspension of license of the Petitioner is also currently pending before the Punjab Bar Council Tribunal.

5. Arguments heard and record perused.

6. The matter has been assigned to this Bench pursuant to a direction issued by the Full Bench of the Hon'ble Supreme Court of Pakistan in C.M.A.228/2021 in C.M.A.6181/2020 in C.P.134 of 2012, *vide* order dated 14.09.2021, for its expeditious disposal. The relevant paragraph-5 of said order is read as under:-

"Ms. Nasreen Majeed Chohan submits that she has challenged the action of Bar Council through W.P. No. 17204/2021 which is pending. She prays that the same be heard and decided expeditiously. Let this request be placed before the Hon 'ble Chief Justice of the Lahore High Court, Lahore."

Now, Sub-Section (2) of Section 13 of the Act, which is most relevant here, is reproduced hereunder for ease of the matter and ready reference:

"Any person aggrieved by an order or decision of a Provincial Bar Council, [Islamabad bar Council], [the Supreme Court Bar Association or a Bar Association at the national level] may, within thirty days of such order or decision, prefer an appeal to the Pakistan Bar Council, whose decision in such appeal shall be final."

From bare perusal of the afore-quoted provision of law, it is absolutely clear that remedy of filing an appeal before the Pakistan Bar Council is available to the Petitioner, therefore, writ is not competent being pre-mature. Moreover, if the Petitioner has a strong arguable case, she may raise all the grounds/points agitated in this petition before the appellate forum in the appeal with the support of relevant provisions of the Act as well as the jurisprudence developed by the superior Courts of the country on the issue in hand. Recently, the Hon'ble Supreme Court of Pakistan in the case of *Syed Iqbal Hussain Shah Gillani versus Pakistan Bar Council through Secretary, Supreme Court Bar Building, Islamabad and others* (2021 SCMR 425) has declared that a Constitutional petition can only be entertained by the High Court if the association or body performed public functions in relation to the affairs to the Federation, Provinces or Local Authority as

envisaged under Article 199 of the Constitution whereas under the Act neither the affairs of a bar Council nor any of its committees come under the administrative command of the Provincial or Federal Government because it, being an autonomous body, has independent elections and generated its own funding without any Government control, therefore, the PBC is not amenable to the constitutional jurisdiction of this Court. In this regard, reference can also be made to the judgment passed by the Islamabad High Court, Islamabad in *Mohammad Waqas Malik, Advocate versus Islamabad Bar Council through Secretary and 2 others* (2017 CLC 1173).

7. In view of the above, this writ petition is **dismissed** being not maintainable. The Petitioner may, however, avail alternate remedy available to her under the law/Act, which if availed, the intervening period consumed in agitating the matter before this Court, may be Condoned by the concerned authority/forum.

(R.A.) Petition dismissed